

DONATED LEAVE

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EFFECTIVE DATE: August 21, 2026

POLICY OWNER: CHRO Policy Unit

DIVISION: Chief Human Resources Office

INTERNAL OR STATEWIDE POLICY: Statewide

LAST REVIEWED DATE: August 2026

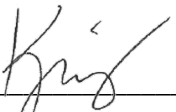
SUPERSEDES: 60.025.01 (2025)

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REFERENCE/AUTHORITY:

- ORS 240.015; 240.145(3); 240.250; 240.551; OAR 166-300-0035

APPROVED SIGNATURE:



Kristin Jones, interim chief human resources officer

Statement

Oregon state government recognizes the importance of replacing income and continuing benefits when an employee or an employee's eligible family member suffers serious, long-term health problems.

Applicability

All employees except temporary employees and employees represented by a collective bargaining agreement.

Forms

- [Donated Leave Toolkit](#)
- [Affinity Attestation Form](#)

Definitions

Family member: Includes the employee's spouse or domestic partner and the following:

- Parent (includes biological, adoptive, stepparent, foster parent, or legal guardian, or the parent of the employee's spouse/domestic partner, or the employee's parent's spouse/domestic partner, or in loco parentis)
- Child (includes biological, adopted, stepchild, or foster child; spouse/domestic partner's child, or the child's spouse/domestic partner; or a child for whom the employee stood in loco parentis)
- Sibling or stepsibling or the sibling's or stepsibling's spouse or domestic partner
- Grandparent or the grandparent's spouse or domestic partner
- Grandchild or the grandchild's spouse or domestic partner
- Members of the immediate household
- An individual who is related by affinity to the employee

Parental Leave: Leave from work that is taken for the birth, adoption or placement of a foster child. As used in this policy, parental leave does not include pregnancy-related disability, or post-partum serious illnesses of either the child or the parent.

Also refer to State HR Policy 10.000.01, Definitions.

Policy

1. State agencies administer a donated leave program that allows state employees to support other state employees in serious need by donating paid leave time. Refer to State HR Policy 60.000.10, Special Leave with Pay, for information related to bereavement donated leave.
 - a. Program Administration
 - i. The appointing authority administers this policy as the agency's program. The policy allows an employee to voluntarily donate vacation leave, compensatory time or both to an eligible employee's sick leave account.
 - ii. The agency may only apply donated leave to an eligible employee as the need occurs.
 - iii. The agency will base the amount of donated hours on the conversion of the donor's salary rate to sick leave hours at the recipient's base

rate of pay. The amount of leave transferred to the recipient may not exceed the equivalent of the recipient's normal rate of pay.

- iv. If the recipient of donated leave needs more leave than the initial amount of time requested, they may submit subsequent requests for donated leave and updated medical certification.
- v. An employee may not donate time they have lost due to leave accrual limits set by CHRO policy.
- vi. The agency must consider time taken under this program to be sick leave with pay. The agency must consider these hours to be time worked for purposes of leave accrual and holiday pay.

b. Eligibility and Request for Donated Leave

- i. A regular status employee may request and be eligible to receive donated leave under either of the following circumstances:
 - 1. To recover from or seek treatment for a serious health condition or parental leave expected to continue for at least 15 consecutive calendar days after the employee has used all accumulated leave and for which the total absence is expected to last at least 30 consecutive calendar days or;
 - 2. To care for or seek treatment for a family member with a serious health condition which is expected to continue for at least 15 consecutive calendar days following the employee's exhaustion of accumulated leave and for which the total absence is expected to last at least 30 consecutive calendar days.
- ii. Submitting a request.
 - 1. An employee may initiate a request for donated leave within the Department of Administrative Services human resources information system (HRIS).
 - 2. If an employee is unable to submit a request within the HRIS, an agency may accept a written request from the employee, a family member or other responsible party.
 - 3. The request must include the specific amount of time requested based on the projected need.

4. A certification from an attending physician or practitioner must accompany the request, verifying a qualifying medical need exists for either the employee or a family member. The certification must state the estimated amount of time the employee will need away from work; it must also be consistent with the amount of time the employee requests. Medical certification obtained for other purposes such as FMLA or OFLA may also be used for the purpose of verifying an employee's eligibility to receive donated leave.
- iii. Donated leave may be taken on an intermittent basis for the same condition and only after an employee has met the initial eligibility criteria listed in 1. b. i.
 - iv. Reduced Work Schedules: An employee meets the eligibility requirements in 1. b. i. when a serious health condition requires a reduced work schedule resulting in partial day absences in excess of 15 calendar days following the exhaustion of accrued leave and the employee's absence related to the condition exceeds 30 calendar days (whether partial or full days) in combination of paid and unpaid leave.
 - v. An employee may not request donated leave for short-term or sporadic conditions or illnesses that are common, expected or anticipated. This includes, but is not limited to, sporadic, short-term recurrences of chronic allergies or conditions, short-term absences due to contagious diseases, short-term, recurring medical or therapeutic treatments. Each situation must be examined and decided on a case-by-case basis and must be handled consistently and equitably within an agency.
 - vi. An employee may not request donated leave when they are eligible to receive or are receiving workers' compensation.
 - vii. Donated leave can impact long- and short-time disability benefits. It is the employee's responsibility to consult with their agency payroll office before applying for donated leave while receiving disability benefits for information on how donated leave will impact their specific circumstances.
- c. Donations within the Same Agency:

- i. The donor may submit a request to donate leave within the HRIS. If the donor is unable to submit a request within the HRIS, the agency may accept a written request from the donor. The donor's request must be processed as per agency program procedures before the transfer of leave occurs.
 - ii. An employee may donate leave only in one-hour increments to a recipient.
 - iii. Donated hours transfer from the donor's accrued leave as needed by the recipient. If total leave donated exceeds the total amount of leave accepted, the unaccepted leave remains in the donor's accrued leave balance.
- d. Donations between Agencies:
 - i. The donor may submit a request to donate leave within the HRIS. If the donor is unable to submit a request within the HRIS, the agency may accept a written request from the donor. The donor's request must be processed as per agency program procedures before the transfer of leave occurs.
 - ii. An employee may donate leave only in one-hour increments to a recipient.
 - iii. An appointing authority or designee may disallow the transfer of donated leave between agencies for legitimate business reasons including, but not limited to, restrictions on the use of dedicated funding sources.
- e. Documentation Requirements. Agencies maintain the following documentation in the separate confidential medical file within the HRIS for each request for donated leave for a period of four years from the date of the request:
 - i. Employee's request to receive donated leave with supporting medical certification.
 - ii. Appointing authority (or designee) approval or denial of request for donated leave.
 - iii. The donor's authorization to donate leave with appropriate signatures, including the appointing authority or designee, payroll staff, and number of hours donated.

- iv. Record of the total leave accepted by a receiving employee.